

# The waterfront listing sheet

What to check before you list, what your buyer's engineer will ask, and the verified city minimums.

## BEFORE YOU LIST • WATERFRONT

### One disclosure rule worth knowing first

In **Delray Beach**, any contract to sell property in a tidally influenced area signed after 1 February 2022 must carry a tidal-flood-barrier disclosure, in bold capitals of at least 14 point. It is written into the land development regulations, and it is the kind of requirement that surfaces at the closing table rather than at the listing appointment. Other cities in this market do not all have an equivalent — check the one you are in.

**Source.** City of Delray Beach Land Development Regulations Sec. 7.1.7; Ordinance 23-21, adopted 11 January 2022. Verified 2026-09.

### Seven questions before you list

#### 1 How high is the cap, and in which datum?

A figure in MLW is not the same number as a figure in NAVD88. Contractor drawings in this market are sometimes written to MLW while the city states its rule in NAVD88. Ask which datum before anyone compares the two.

#### 2 When was the wall last inspected, and by whom?

A standard home inspection does not look at a seawall. If the seller has an engineer's report, get it now rather than discovering it in the buyer's hands.

#### 3 Has any work been permitted, and was it closed out?

An open permit on a marine structure is a title and closing problem, not a punch-list item.

#### 4 Is the wall shared with a neighbour?

Shared walls, shared caps and tie-back easements change who pays and who can act. Find out before a buyer's attorney does.

#### 5 Does any of it sit on a neighbour's line or in a waterway setback?

The zoning location survey answers this. Ask whether one exists.

#### 6 Is there a sinkhole, a depression, or bare soil along the cap?

Soil leaving the property is the single most expensive thing to find late.

- 7 What is the city's current minimum, and does this wall meet it?**
- The rule changes at the city line, not the county line. Our city pages carry the figure, the code section, and the date we checked it.

## Three things that kill a waterfront deal late

- 1 Substantial repair pulls in the whole shoreline**
- In several cities, once work exceeds a threshold — commonly more than 50% of the length, the cap included, or any work changing elevation along more than 50% — the minimum elevation applies to the continuous wall along the entire property, not just the stretch being fixed. A quote for 40 feet can become a quote for 200.
- 2 The wall is compliant today and not compliant on rebuild**
- Existing walls are generally allowed to stay. The moment they are substantially repaired or replaced, today's minimum applies. A wall that is fine now can carry a much larger number the day it needs work.
- 3 Build low now, build again later**
- Where a city allows an interim elevation before a future deadline, the wall normally has to be engineered so it can be raised later. That is two mobilisations, not one. Ask what it costs to build to the final elevation now.

## Verified minimum cap elevations

Published with the code section and the date checked. The rule changes at the city line. Confirm with the building department before anyone relies on it in a contract.

| CITY            | COUNTY     | MINIMUM                  | VERIFIED |
|-----------------|------------|--------------------------|----------|
| Fort Lauderdale | Broward    | 5.0 ft NAVD88            | 2026-09  |
| Hollywood       | Broward    | 4.0 ft NAVD88 until 2035 | 2026-09  |
| Pompano Beach   | Broward    | 5.0 ft NAVD88 minimum    | 2026-09  |
| Miami Beach     | Miami-Dade | 5.7 ft NAVD88            | 2026-09  |
| Boca Raton      | Palm Beach | 4.0 – 6.0 ft NAVD88      | 2026-09  |
| Delray Beach    | Palm Beach | 4.2 ft NAVD88 minimum    | 2026-09  |

**How to use this.** None of this is an inspection, an engineering opinion, or a valuation. It is the set of questions that stops a waterfront deal falling apart in the inspection period, and the figures your buyer's engineer will be working from. Full city pages, the code sections and the dates are at [walldockdeck.com](http://walldockdeck.com).